

STATE OF NEW YORK

7862--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 11, 2025

Introduced by M. of A. LEVENBERG, SHRESTHA, ANDERSON -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to permit political parties to perform certain functions without forming county committees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 16-110 of the election law is
2 amended and a new subdivision 3 is added to read as follows:

3 2. The [~~chairman~~] chairperson of the county committee of a party with
4 which a voter is enrolled in such county, or, in the absence of a county
5 committee in such county, a person elected for such purpose by a majori-
6 ty vote of the state committee of the party at a regular or special
7 meeting of the party at which a quorum is present, may, upon a written
8 complaint by an enrolled member of such party in such county and after a
9 hearing held by [~~him~~] such person or by a sub-committee appointed by
10 [~~him~~] such person upon at least two days' notice to the voter,
11 personally or by mail, determine that the voter is not in sympathy with
12 the principles of such party. The Supreme Court or a justice thereof
13 within the judicial district, in a proceeding instituted by a duly
14 enrolled voter of the party at least ten days before a primary election,
15 shall direct the enrollment of such voter to be cancelled if it appears
16 from the proceedings before such [~~chairman~~] person or sub-committee, and
17 other proofs, if any, presented, that such determination is just.

18 3. The state committee of a party may elect, by majority vote at a
19 regular or special meeting at which a quorum is present, a person or
20 persons to receive complaints, hold hearings and institute proceedings
21 under this section for any county or counties in which there is no coun-
22 ty committee of such party.

23 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD10920-02-5